

BEFORE THE OKLAHOMA STATE DEPARTMENT OF HEALTH
STATE OF OKLAHOMA

FILED

JUL 28 2006

OFFICE OF
ADMINISTRATIVE HEARINGS

STATE OF OKLAHOMA, *ex rel.*
Protective Health Services of the
State Department of Health,

Petitioner,

v.

No. LPC/LMFT/LBP-2006-164

James O. Hale, M.S.

Respondent.

CONDITIONS FOR DISMISSAL OF ADMINISTRATIVE ACTION

This matter comes before the undersigned for approval of a settlement agreement reached by the parties hereto. The parties, Oklahoma State Department of Health and James O. Hale, desiring to resolve this matter without resorting to litigation, agree and the undersigned accepts the agreement as follows:

1. OSDH is an agency of the State of Oklahoma and is charged with licensure and enforcement activities of the licensed professional counselors pursuant to the Oklahoma Licensed Professional Counselors Act, 59 O.S. § 1901 *et seq.* (hereafter "Act") and the rules promulgated thereto, the Licensed Professional Counselor Regulations, Oklahoma Administrative Code 310:405-1-1 (hereafter "Rule(s)").
2. OSDH has jurisdiction over the subject matter and over Respondent pursuant to the Act and Rules.

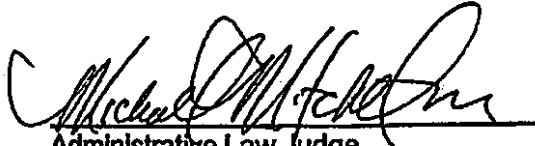
-----3. On April 18, 2000, Petitioner issued Respondent license #2262 in accordance with the Act and Rules.

4. Petitioner conducted an investigation based on a complaint and determined that Respondent engaged in unprofessional conduct by which he failed to maintain the highest standards of the profession while rendering professional services by conducting an examination of a client and placing incorrect and damaging information in the client's Report. Petitioner contends that such action on behalf of the Respondent constitutes a violation of 59 O.S. § 1912(A)(5-6) and Rules 310:405-3-1 and 310:405-3-6.
5. Respondent denies the allegation. However, to resolve this matter, Respondent agrees not to contest the disputed allegation through litigation.
6. Therefore, in resolution of this matter the parties mutually agree to the following conditions:
 - a. Respondent agrees to an administrative penalty of Five Hundred Dollars (\$500.00) to be paid out over a two (2) month period. Payments of Two Hundred Fifty Dollars (\$250.00) shall be due monthly starting no later than August 10, 2006 with the final payment being made on or before September 10, 2006. All payments shall be sent to the Office of Professional Counselor Licensing, Oklahoma State Department of Health, 1000 NE 10th Street, OKC, OK 73117, and made payable to "LPC Revolving Fund". Respondent may prepay the balance in full at any time.
 - b. Respondent agrees to submit to a supervisory probation period to last six (6) months from the date of beginning said supervision.
7. Petitioner, with advice from the LPC Advisory Board, will select an LPC to act as a supervisor within a reasonable time period after

- filing. Petitioner will provide its best efforts to find a supervisor within a reasonable geographic proximity to Respondent.
- ii. Respondent will meet with the chosen supervisor on a weekly basis for one (1) hour each week throughout the duration of the probationary period. Respondent shall be responsible for paying for the services of the supervisor.
 - iii. The supervisor shall forward a report of said meetings to Petitioner's LPC Office every month.
 - iv. The supervisory meetings shall focus on ethics, record preparation, professional judgment, and/or other general practice issues as deemed necessary by the supervisor and/or any other such issues that may arise in the course of the supervision.
- c. Respondent agrees to enroll in and successfully complete a three (3) hour course in ethics at a regional college or university of Respondent's choosing. Respondent shall enroll in said ethics course in the next available school semester after filing of this agreement. Respondent shall submit documentation verifying his successful completion of said ethics course within fifteen (15) days of receiving said documentation to the LPC Office as listed in Paragraph 6.a. Respondent shall be responsible for paying for said ethics course.
- d. Should Respondent fail to meet any of the above-referenced terms, an automatic three (3) month suspension will be activated against Respondent's LPC license. Should Respondent successfully complete all

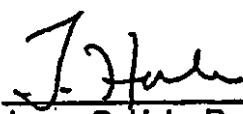
of the above-referenced terms, Petitioner will waive any suspension of Respondent's LPC license.

7. Both parties mutually agree that failure to comply with the terms of this agreement will constitute a breach.
8. If at the conclusion of the probationary period, Respondent has successfully completed all of the above-referenced terms, Petitioner's petition for administrative action against Respondent will be dismissed. However, information related to said administrative action, including the terms of this agreement, will be available to the public in accordance with the Oklahoma Open Records Act and any other Oklahoma statutes or rules.
9. This agreement shall be effective upon filing.


Administrative Law Judge
for James Skayton

Approved:


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ATTORNEY FOR PETITIONER

 7-21-06
James O. Hale, Respondent